

GLOBAL MASTER MANUFACTURING AGREEMENT (MMA)

Effective Date: _____

This Master Manufacturing Agreement (“Agreement”) is entered into by and between:

SIINGE STUDIO, a legal entity organized under the laws of the United States, domiciled in Colorado (“Studio”)

and

_____, a company organized under the laws of _____, with registered address at _____ (“Manufacturer”).

Each a “Party” and collectively the “Parties.”

1. Purpose and Scope

This Agreement governs the development, sampling, and manufacturing of garments and related goods (“Goods”) by Manufacturer for Studio.

Specific commercial and technical terms shall be defined in written Project Briefs, Tech Packs, and Orders, which are binding annexes to this Agreement.

2. Tech Pack Review and Quotation

Upon receipt of a Tech Pack and Project Brief, Manufacturer shall:

- Schedule and attend a review meeting
- Submit within five (5) business days:
 - Sample and production pricing
 - MOQ(s)
 - Sampling and production timelines
 - Technical clarifications
 - Any limitations or restrictions

If no written objections are raised, requirements are deemed accepted.

Default timelines unless otherwise agreed:

- First prototype: two (2) weeks from sample payment
- Revisions: one (1) week

3. Deliverables

Manufacturer shall provide:

- PDF patterns
- DXF files (ASTM/AAMA standard)
- RUL grading files (if applicable)

Mass production may not begin without written approval of:

- Fabric
- Lab dips
- Strike-offs
- Fit samples

4. Communication and Access

- Contracts and Tech Packs via email
- Production updates via agreed written channels
- 24–48 hour response time
- No direct client contact without written approval
- Studio may conduct virtual or in-person progress reviews
- Studio may document facilities and production processes

5. Payment Terms

Unless otherwise specified:

- 50% deposit upon Order confirmation
- 50% balance after QC approval and before shipment
- Formal invoices required

6. Quality Control and Shipping

- All approved tolerances are mandatory
- Studio may conduct inspections or appoint third-party inspectors
- No shipment without written approval
- Manufacturer shall repair or replace defective Goods within fourteen (14) days

7. Shipping and Incoterms

Unless otherwise specified in the applicable Order, shipments shall be FCA (Factory) under Incoterms® 2020.

Risk of loss and transfer of responsibility shall be governed by the agreed Incoterm in the Order.

8. Delays and Penalties

Manufacturer must notify Studio of anticipated delays.

Penalties:

- Over 7 days: 5% deduction
- Over 15 days: 10% deduction
- Over 30 days: cancellation permitted

Force majeure applies only with proper notice and mitigation.

9. Subcontracting

No subcontracting without written approval.

Manufacturer remains fully responsible for performance and compliance.

10. Intellectual Property

All designs, patterns, Tech Packs, CAD files, grading rules, 3D models, samples, and final Goods remain the exclusive property of Studio.

Manufacturer may not reproduce, commercialize, or share Studio intellectual property.

11. Confidentiality

Manufacturer shall treat all non-public information, including client identities, pricing, sourcing, technical documentation, and samples, as confidential.

Confidentiality obligations survive for five (5) years following termination.

12. Tooling and File Ownership

All tooling, patterns, grading files, and development materials created for Studio are Studio property.

Manufacturer shall not retain, reuse, or commercialize such materials.

13. Overruns and Unauthorized Production

Manufacturer shall not produce excess units, overruns, seconds, or surplus Goods beyond quantities expressly authorized in writing.

Unauthorized production constitutes material breach.

14. Non-Solicitation of Clients

Manufacturer agrees that it shall not directly solicit, contract with, or provide manufacturing or development services to any client introduced to Manufacturer by Studio for a period of two (2) years following the last introduction or transaction.

This clause survives termination of this Agreement.

15. Labor Standards and Sustainability

Manufacturer certifies compliance with applicable labor laws and confirms:

- No child or forced labor
- Safe working conditions
- Fair wages
- Non-discrimination

Studio may audit compliance upon reasonable notice.

16. Regulatory and Restricted Substances Compliance

Manufacturer warrants that Goods shall comply with all applicable laws and product safety regulations in the destination market, including but not limited to:

- Fiber labeling requirements
- Flammability standards
- Chemical and restricted substance regulations
- CPSIA (where applicable)
- REACH (where applicable)

Manufacturer shall ensure materials and processes meet any compliance requirements specified in the Project Brief or Tech Pack.

17. Warranty

Manufacturer warrants Goods shall be free from defects in material and workmanship and conform to approved specifications for one hundred twenty (120) days from delivery.

Defective Goods shall be repaired or replaced at Manufacturer's expense.

18. Indemnification

Manufacturer shall indemnify and hold harmless Studio from claims arising from:

- Manufacturing defects
- Regulatory noncompliance
- Labor violations
- Intellectual property infringement caused by Manufacturer

19. Termination

19.1 For Cause

Studio may terminate immediately for repeated QC failures, IP violations, ethical violations, or material delays.

19.2 For Convenience (Balanced)

Studio may terminate a Project Brief or Order for convenience upon written notice.

Manufacturer shall be entitled to:

- Payment for completed and approved work
- Reimbursement for documented, non-cancellable material costs reasonably incurred prior to termination notice

No payment shall be due for unperformed work or anticipated profits.

19.3 Survival

Intellectual Property, Confidentiality, Non-Solicitation, Warranty, Indemnification, and Dispute Resolution survive termination.

20. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of the State of Colorado.

The Parties shall attempt good-faith negotiation prior to arbitration.

Unresolved disputes shall be resolved by binding arbitration in Denver, Colorado under AAA rules.

Arbitration awards shall be enforceable under the Convention on the Recognition and Enforcement of Foreign Arbitral Awards (New York Convention).

Studio may seek injunctive relief for IP or confidentiality breaches in any court of competent jurisdiction.

21. General Provisions

21.1 Force Majeure

Neither Party shall be liable for delay due to events beyond reasonable control. Written notice must be provided within five (5) business days. Payment obligations and IP protections are not excused.

21.2 Currency Fluctuation

Quotes in foreign currency remain valid for thirty (30) days. Fluctuations exceeding five percent (5%) may justify written review. No unilateral price changes are permitted.

21.3 Severability

Invalid provisions do not affect remaining terms.

21.4 Entire Agreement

This Agreement and its annexes constitute the entire agreement.

21.5 Amendments

Amendments must be in writing and signed by both Parties.

21.6 Assignment

Manufacturer may not assign this Agreement without written consent.

21.7 Independent Contractors

The Parties are independent contractors.

21.8 Electronic Execution

This Agreement may be executed electronically and in counterparts.

21.9 Language

If executed in multiple languages, the English version prevails.

SIGNATURES

SIINGE STUDIO

Signature: Sierra White

Name: Sierra White

Title: Founder of SIINGE STUDIO

Date: _____

MANUFACTURER

Signature: _____

Name: _____

Title: _____

Date: _____